

Town of Durham v. Carlisle et al.

(1976), 10 O.R. (2d) 284

ONTARIO
GREY COUNTY COURT
THOMPSON, CO.CT.J.
19TH AUGUST 1975

Limitation of actions -- Gasoline spilling onto road after collision between motor vehicles -- Town fire department called to scene of accident -- Whether expense incurred by town damage occasioned by motor vehicle -- Highway Traffic Act, s. 146(1).

Negligence -- Gasoline spilling onto road after collision between motor vehicles -- Town fire department called to scene of accident -- Town having contract claim against township for expenses incurred in fighting fires -- Whether town can recover expenses incurred from negligent drivers and owners of motor vehicles.

Contracts -- Implied contracts -- Gasoline spilling onto road after collision between motor vehicles -- Town fire department called to scene of accident -- Town having contract claim against township for expenses incurred in fighting fires -- Whether town can recover expenses incurred from drivers and owners of motor vehicles on basis of implied contract.

Two motor vehicles, one of them a gasoline truck, collided on a highway near the Town of Durham. Gasoline spilled onto the roadway and down the ditches on both sides of the road. Because of the risk of fire the Durham Fire Department was called and its personnel and equipment were on duty at the scene of the accident for a considerable period of time. The Town of Durham had a contract with the Township of Normanby to provide fire protection for the area in which the accident occurred. This

contract called for payment at an hourly rate, which, on the basis of the time spent by the Durham Fire Department at the accident scene, amounted to \$1,600. The Town of Durham made no claim for payment of this amount from the Township of Normanby. Instead, the town brought an action in tort and contract against the owners and drivers of the motor vehicles involved in the accident to recover the \$1,600. Held, although the drivers of the two vehicles had been negligent, the action should be dismissed.

Although the Town of Durham did not commence its action until more than one year after the accident occurred, its claim was not barred by the one-year limitation period provided in s. 146(1) of the Highway Traffic Act, R.S.O. 1970, c. 202, from bringing action for damages caused by a motor vehicle. The damages claimed were not physical damages but damages as a result of services rendered to supervise a potential fire hazard. Although the statement of claim was founded both on negligence and on breach of contract, it seemed that the account rendered was not for "damages occasioned by a motor vehicle" but for damages occasioned by unpaid supervisory services which had been supplied.

To the extent that the claim was based on negligence, the Town of Durham alleged that the amount claimed was for services required as a direct consequence of the accident and that the accident arose from the negligence of one or more of the defendants. Notwithstanding that the town provided services because of the accident, its presence at the scene was not as a direct result of the accident itself but rather pursuant to its contract with the Township of Normanby. In any event, the town did not sustain any damages which could be attributed to the defendants' negligence since it had a valid contract claim against the Township of Normanby.

To the extent that the claim was based on contract, the Town of Durham alleged that there had been an implied contract between the town and the defendant drivers and vehicle owners for supervision, protection and surveillance regarding the potential fire hazard. At the outset, it would appear that an implied contract, if one existed, could only be found between

the plaintiff and the one defendant who actually called the fire protection services. However, no course of action lay against any of the defendants in contract. This was a case where there was an implied authority and a public duty to call the fire department when a fire danger was apprehended. If this danger happened to be within the Township of Normanby, the township had to pay for the services. This was not a case where one could argue that the services of the Town of Durham were to be gratuitous. There was a valid contract between the town and the township which the town had not seen fit to invoke. It was, therefore, not equitable for the defendants to fill the gap which the Town of Durham had deliberately left void.

[Upton-on-Severn R.D.C. v. Powell, [1942] 1 All E.R. 220; Daventry Corporation v. Newbury and Wright, [1926] 1 K.B. 383; James & Egham Fire Brigade v. Staines Urban District Council (1900), 83 L.T. 426, distd; Hydro-Electric Power Com'n of Ontario v. Bruell Float Service Ltd. (1973), 1 O.R. (2d) 358, 40 D.L.R. (3d) 342; revd 3 O.R. (2d) 108, 44 D.L.R. (3d) 524 [affd 55 D.L.R. (3d) 236, 3 N.R. 508]; Molnar v. Newman et al., [1973] 3 O.R. 39, 35 D.L.R. (3d) 672; F.W. Argue Ltd. et al. v. Howe, [1969] S.C.R. 354, 3 D.L.R. (3d) 290; varg sub nom. R.A. Beamish Stores Co. Ltd. et al. v. F.W. Argue Ltd. et al., [1966] 2 O.R. 615, 57 D.L.R. (2d) 691; Heppel v. Stewart et al., [1968] S.C.R. 707, 69 D.L.R. (2d) 88; Dufferin Paving & Crushed Stone, Ltd. v. Anger et al., [1940] S.C.R. 174, [1940] 1 D.L.R. 1; Winnipeg Electric R. Co. v. Aitken (1923), 63 S.C.R. 586, [1923] 2 D.L.R. 71, 29 C.R.C. 106, [1923] 1 W.W.R. 756; Northern Alberta Dairy Pool Ltd. v. Strong & Sons Ltd. (1960), 27 D.L.R. (2d) 174, 33 W.W.R. 322, 81 C.R.T.C. 345; R. v. Power Tank Lines Ltd. (1975), 23 C.C.C. (2d) 464; Matheson v. Smiley, [1932] 2 D.L.R. 787, [1932] 1 W.W.R. 758, 40 Man. R. 247, refd to]

ACTION for damages for the value of fire protection services rendered.

Peter T. Fallis, for plaintiff.

McLeod A. Craig, Q.C., for defendants.

THOMPSON, CO.CT.J.:-- This action is brought by the plaintiff against the defendants to recover from the defendants the sum of \$1,600.

The claim arises out of an incident which occurred on April 19, 1973, on Highway 6 about one-half mile north of Varney and one mile south of Durham when motor vehicles operated by the defendants Carlisle and Lapham collided. The vehicle operated by the defendant Lapham was one used for the transportation of gasoline and as a result of the accident in question, the gasoline truck was damaged and gasoline was permitted to spill out onto the roadway and down the ditches on both sides of the road. The accident occurred at approximately 11:00 a.m. The risk of fire and/or explosion being immediately apparent, a call was sent out for the services of the Durham Fire Department. The Durham Fire Department responded and while no fire or explosion occurred, the area was in effect cordoned off for a substantial portion of the day and personnel of the fire department and its equipment were on duty for a considerable period of time.

The plaintiff computes that as a result of the services rendered by it by way of the supply of personnel and equipment, it incurred an expense of \$1,600 and it is with respect to this expense that this claim is made against the defendants.

The plaintiff, by an agreement dated February 23, 1968, entered into between itself and the Corporation of the Township of Normanby, agreed to provide fire protection for the area in which the accident in question occurred. The accident occurred within the confines of the Corporation of the Township of Normanby. Under the terms of the agreement which is filed in these proceedings as ex. 1, the Township of Normanby became obligated to pay to the plaintiff the sum of \$200 for the first hour or portion thereof and \$100 per hour for each subsequent hour. It is on the basis of a computation of \$200 per hour for the first hour and \$100 per hour for each subsequent hour that

the claim for \$1,600 is made up in this action.

No claim was made by the plaintiff against the Corporation of the Township of Normanby for payment pursuant to the agreement just referred to. Instead the plaintiff has elected to proceed directly against the defendants for recovery of the amount to which it feels itself entitled calculated pursuant to the terms of the agreement filed in these proceedings as ex. 1.

The plaintiff's claim against the defendants is based on tort and contract. The plaintiff alleges negligence against the drivers of the two vehicles involved in the initial accident and alleges that the fire protection services were required as a direct consequence of the accident so caused by negligence. The second ground relied upon was that of an implied contract between the plaintiff and the defendants for the supervision, protection and surveillance services and the principle of restitution was relied upon for this latter ground.

In the statement of defence filed on behalf of all the defendants, there is an admission that the accident was caused by the negligence of the defendants Carlisle and Lapham in the operation of the vehicles but there is a denial that there is any liability to the plaintiff resulting from the said collision and that in so far as the claim is based on negligence, the alleged damages to the plaintiff were not reasonably foreseeable and in any event are too remote and that as a matter of law, there was not any duty owed by the defendants to the plaintiff at any material time. The defendants deny that there was any implied contract between them or any of them and the plaintiff. In addition thereto, the defendants plead and rely upon the provisions of s. 146 of the Highway Traffic Act, R.S.O. 1970, c. 202, and state that the action was commenced more than one year after the accident and this claim is therefore barred.

I propose to deal first with the defence that the action is barred by reason of the same not having been commenced until after the expiration of one year from the date of the accident in question because if this defence is successful, then, of course, it is not necessary for me to deal with the other

interesting aspects of the claim. At the outset, let me say that I have not been able to find nor has there been referred to me any authority involving facts such as are found in this particular case. An extensive research relating to this particular defence has been carried out and because of the rather novel situation here, I felt it proper to deal with this aspect of the matter in some detail.

The relevant section of the Highway Traffic Act, as amended by 1972, c. 128; 1973, c. 45 and c. 167; 1974, c. 66, and 1975, c. 3 [further am. 1975, c. 37], reads as follows:

146(1) Subject to subsections 2 and 3, no action shall be brought against a person for the recovery of damages occasioned by a motor vehicle after the expiration of twelve months from the time when the damages were sustained.

(2) Where death is caused, the action may be brought within the time limited by The Fatal Accidents Act.

(3) Notwithstanding subsections 1 and 2, when an action is brought within the time limited by this Act for the recovery of damages occasioned by a motor vehicle and a counterclaim is made or third party proceedings are instituted by a defendant in respect of damages occasioned in the same accident, the lapse of time herein limited is not a bar to the counterclaim or third party proceedings.

The latest case regarding the statutory limitation period is the case of Hydro-Electric Power Com'n of Ontario v. Bruell Float Service Ltd. (1974), 3 O.R. (2d) 108, 44 D.L.R. (3d) 524 (Ont. C.A.) [affirmed 55 D.L.R. (3d) 236, 3 N.R. 508], reversing 1 O.R. (2d) 358, 40 D.L.R. (3d) 342 (O.H.C.J.), involving a claim founded upon a breach of contract by a commercial carrier. It was held that where a vehicle belonging to a commercial carrier drives under a low bridge and the machinery being transported is damaged by striking the bridge, the machinery owner's claim is a claim for a breach of contract and not for damages occasioned by a motor vehicle. The limitation period prescribed by the Highway Traffic Act is therefore inapplicable. The Court held that the issue turned on

the words "damage occasioned by" and stated that the damage refers to legal as well as physical damage. The question then is whether the Legislature means damage at large; that is, damages in tort, contract and otherwise or only damages in tort. On the facts, it was stated that the primary claim was for a breach of contract and that actions in contract were not included within the ambit of the statute. The breach of contract was not caused by a motor vehicle but by the failure to deliver pursuant to the contract. The *Argue* and *Heppel* cases, *infra*, were distinguished since in the former case, the vehicle was not being used as a vehicle and in the latter case, the claim was in negligence arising out of a collision between motor vehicles.

The case of *Molnar v. Newman et al.*, [1973] 3 O.R. 39, 35 D.L.R. (3d) 672 (O.H.C.J., Lieff, J.), was an appeal from the decision of County Court Judge Griffiths who held that the damages did not come within s. 146(1). The damages in question were caused from scrap metal falling from a truck travelling on a highway striking an automobile. The Court based its decision that the damages were within the meaning of s. 146(1) on the case of *Argue v. Howe*, *infra*, which held that damage must have been occasioned by a motor vehicle being used as such. Although the actual physical damage was caused by scrap metal, it was only because of the motion of the truck that it was projected onto the plaintiff's automobile.

F.W. Argue Ltd. et al. v. Howe, [1969] S.C.R. 354, 3 D.L.R. (3d) 290 (S.C.C.), varying *sub nom. R.A. Beamish Stores Co. Ltd. et al. v. F.W. Argue Ltd. et al.*, [1966] 2 O.R. 615, 57 D.L.R. (2d) 691 (Ont. C.A.), was a claim brought against the operator of an oil truck for damage caused to a building by pumping oil beyond the capacity of the building's storage tank. Spence, J., for the Court, held that the limitation period did not apply because the damage was not caused by the use and operation of a motor vehicle but the use or operation of a pump mounted on the motor vehicle when the vehicle was stationary.

In *Heppel v. Stewart et al.*, [1968] S.C.R. 707, 69 D.L.R. (2d) 88 (S.C.C.), the defendant hit the back of the plaintiff's vehicle and the plaintiff sought to join as a party

defendant the garageman who repaired the defendant's braking system immediately prior to the accident. The Highway Traffic Act limitation period was raised as a defence. Mr. Justice Martland, in delivering the judgment of the majority, stated at pp. 709-10 S.C.R., and pp. 89-90 D.L.R.:

The only question in issue is whether the plaintiff's damages were "occasioned by a motor vehicle".

The learned judge of first instance was of the opinion that the subsection applied if the damages claimed were physically caused by the motor vehicle. The Court of Appeal held that the provision applied only if the legal basis of the claim is the use or operation of the motor vehicle.

With respect, I do not agree with this interpretation of the subsection. It does not purport to apply only to causes of action of a particular nature. It does not refer to the use or operation of a motor vehicle. It states specifically that no action shall be brought to recover damages occasioned by a motor vehicle. If a motor vehicle is the occasion for the damage, i.e., if it is the vehicle which brings it about, then the limitation period applies.

There can be no question in this case but that the motor vehicle in question was the occasion for the damage sustained by the plaintiff. Any claim against the appellant [the garageman] would have to allege that her damage was caused by her vehicle being struck by that motor vehicle. That the nature of the negligence which would be alleged against the appellant would be different from that alleged against the other two defendants has no bearing, in view of the way in which the subsection is worded.

The Court referred to the Dufferin case, *infra*, and held that the limitation provision applied. However, Judson, J., dissenting, would have adopted the judgment of the Ontario Court of Appeal that the plaintiff's cause of action against the garageman was not in relation to the use and operation of a motor vehicle but rather was for negligence in repairing the defendant's car.

The case of *Dufferin Paving & Crushed Stone, Ltd. v. Anger et al.*, [1940] S.C.R. 174, [1940] 1 D.L.R. 1 (S.C.C.), was an appeal from the Ontario Court of Appeal. The plaintiff's house had been damaged by vibrations from heavy trucks passing on the highway. It was held that an action grounded on nuisance for damages to the house came within the subsection. The case of *Winnipeg Electric R. Co. v. Aitken* (1923), 63 S.C.R. 586, [1923] 2 D.L.R. 71, 29 C.R.C. 106 (S.C.C.), was applied by *Crocket, J.*, *Davis, J.* (*Hudson, J.*, and *Duff, C.J.C.*, concurring), and *Kerwin, J.*, to the same effect held that the words of the subsection were precise and unambiguous and should be given their ordinary and natural sense. The damage, it was stated, was caused by the motor trucks.

A similar statutory limitation period was considered in the case of *Northern Alberta Dairy Pool Ltd. v. Strong & Sons Ltd.* (1960), 27 D.L.R. (2d) 174, 33 W.W.R. 322, 81 C.R.T.C. 345. The plaintiff had shipped cargo by a common carrier trucker whose truck caught fire. The cargo was destroyed and the action was brought after the limitation period. It was held that the damage was caused by fire, the origin of which was not determined and that the limitation period did not apply.

"Considerable difference of opinion upon the question has existed in the Courts of Ontario ...", stated *Kerwin, J.*, in the *Dufferin* case [at p. 190 S.C.R., p. 15 D.L.R.]. In all of the cases cited, except *Argue*, there was some physical injury caused by direct contact involving a motor vehicle.

In the *Hydro-Electric* case, *supra*, the Ontario Court of Appeal placed reliance on the fact that the claim had been founded in contract to disallow the application of the Highway Traffic Act limitation period.

The damages claimed in the present case are not physical damages but damages as a result of services rendered to supervise a potential fire hazard. There seems to be no authority involving facts such as these. Although the statement of claim is founded both on negligence and on breach of contract, it would seem that the account rendered was not for

"damages occasioned by a motor vehicle" but for damages occasioned by unpaid supervisory services which have been supplied.

I find therefore that s. 146 of the Highway Traffic Act does not apply to the case at hand.

This leaves now for determination the matter of whether or not the plaintiff is entitled to succeed against the defendants either on the basis of contract or tort or both. It will be recalled that no claim was made by the plaintiff against the Township of Normanby who pursuant to the terms of the contract between them would have been obliged to pay the value of the services performed by the plaintiff in this matter.

There are, of course, circumstances in which a claim may be propounded in tort and contract and this appears to be recognized in the judgment of Estey, J.A. (as he then was), in *Hydro-Electric Power Com'n of Ontario v. Bruell Float Service Ltd.* (1974), 3 O.R. (2d) 108 at p. 116, 44 D.L.R. (3d) p. 532, where he stated as follows:

I am aware of no principle of law which precludes a claim in contract only because an action in tort arises on the same facts. The Courts have long ago established the principle that where there has been a breach of duty under a contract it must be disposed of according to the law of contract and should not be regarded as an independent tort, and this is so whether or not the same facts give rise to a breach of contract as well as the tort of negligence: Charlesworth on Negligence, 4th ed. (1962), p. 7. This principle has been expressed by Scrutton, L.J., in *Hall v. Brooklands Auto Racing Club*, [1933] 1 K.B., 205 at p. 213:

"Further, in my view, where the defendant has protection under a contract, it is not permissible to disregard the contract and allege a wider liability in tort ..."

This is not to say that all associations surrounding a motor vehicle in which tortious and contractual consequences are present, will be resolved as a claim in contract.

Dealing first with the claim in so far as it is based on negligence. The plaintiff alleges that the amount claimed is for services required as a direct consequence of the accident and that the accident arose from the negligence of one or more of the defendants. For the purposes of my decision, I have considered that there was negligence on the part of one or more of the defendants.

The defence raised by the defendants is that the damages were not reasonably foreseeable and in any event are too remote and that as a matter of law, there was not any duty owed by the defendants to the plaintiff at the material time. The doctrine of remoteness of damages and proximate cause are indeed most complex areas of tort law. As I comprehend it, a negligent defendant is not liable unless his conduct is both the cause and the proximate cause of the plaintiff's loss. There must be some connection between the wrongful act and the damages; that is, the loss must result from or be attributed to the act of the wrongdoer. In the present case, one must examine what is the causal link between the act of the defendants and the loss of the plaintiff. It is submitted on the plaintiff that the calling of the fire trucks by the one driver is the connecting link. If there had actually been a fire then it might have been that the collision itself would have been the causal link which led to the fire prevention measures, but there was no fire and the fire trucks appeared on the scene apparently pursuant to the request of the driver, through a bystander, although it is my view that had this request not been made by him, somebody under the circumstances would have conveyed the gravity of the situation and its potential danger to the appropriate authorities and the plaintiff's facilities would have been called into play.

Counsel cited a case of *R. v. Power Tank Lines Ltd.* unreported, January 28, 1975 (Provincial Court, Criminal Division, Ord, J.) [since reported 23 C.C.C. (2d) 464], in support of his contention that the defendants are liable to the plaintiff in negligence. In my view, that case is of little value in determining the issue herein. That case concerns the issue of whether, accepting that strict liability applied to

the Environmental Protection Act, an accused was to be treated as an insurer of oil when it was being transported on a highway; that is, whether the company which is responsible for trucking the oil on the highway is responsible (by statute) for the cost resulting from the clean-up of the spillage even though the accident which caused the spillage was not the fault of either the driver or owner of the vehicle. The learned Provincial Court Judge specifically stated at p. 5 [p. 469 C.C.C.] that his decision was "for the purpose of these statutes" and the issue was whether the statute in question applied to the circumstances.

It is my view that notwithstanding that the plaintiff provided services because of the accident, its presence at the scene was not as a direct result of the accident itself but rather pursuant to its obligation in that regard according to the terms of the agreement filed. In any event, I cannot find that the plaintiff sustained any damages which can be attributable to the defendants' negligence since it has and has had at all material times a valid claim against the Township of Normanby pursuant to its agreement.

After giving this matter the most serious consideration, I am of the view that the defendants are not liable to the plaintiff on the grounds of negligence in the circumstances here present.

This leaves for determination the question as to whether or not the defendants are liable to the plaintiff in contract. It is argued by the plaintiff that there was an implied contract between the plaintiff and the defendant drivers and vehicle owners for supervision, protection and surveillance regarding the potential fire hazard. At the outset, it would appear to me that an implied contract, if one existed, could only be found between the plaintiff and the one defendant who actually called the fire protection services. The only Canadian case cited by counsel was the case of Matheson v. Smiley, [1932] 2 D.L.R. 787, [1932] 1 W.W.R. 758, 40 Man. R. 247 (Man. C.A.). In that case, a person was found by two friends severely injured. The friends called the doctor who in turn called a surgeon who in turn performed an operation. The injured man died shortly after and it was held that the surgeon was entitled to recover from

the deceased's estate reasonable remuneration. The case involved a section of the provincial Medical Act allowing a doctor to demand the full costs of professional advice and services. The ground of contract was also examined and it was held that the person to pay should be the person for whose benefit the service was rendered and that a necessary supplied to a person who could not himself contract, created a legal obligation on him to pay.

Also cited by the plaintiff was the case of *Upton-on-Severn R.D.C. v. Powell*, [1942] 1 All E.R. 220 (C.A.), which involved a problem as to whether or not a contract was made by which the Upton Fire Brigade rendered services on an implied contract to pay for them made by or on behalf of Powell. The headnote reads as follows:

The appellant's farm was in the Upton police district, but in the Pershore, and not the Upton, fire district. A fire broke out on the farm, and the appellant telephoned to the police inspector at Upton and asked for the fire brigade to be sent. The Upton fire brigade was informed, and it went to the farm at once. The appellant was entitled to the services of the Pershore fire brigade without charge, but the Upton brigade, if it went to a fire outside its own area, was entitled to contract for payment for its services. At the time when the brigade was summoned, all the parties concerned were under the impression that the farm was in Upton fire district. For the Upton fire brigade, it was contended that a contract had been created by implication, under which it was entitled to be remunerated for its services: --

HELD: the appellant must be treated as having asked for the Upton fire brigade to be sent to his farm, and the fact that at the time the parties thought that the fire was in its area did not prevent there being a contractual relationship. The appellant was, therefore, liable under an implied contract to pay for the brigade's services.

In the case of *Daventry Corporation v. Newbury and Wright*, [1926] 1 K.B. 383, Daventry rendered the services of its fire brigade to the defendants at their request. The fire was

five miles outside Daventry's limits and the issue arose whether a statute (which allowed the borough to send equipment beyond its limits and rendered the owners of the land where the fire occurred liable for expenses) rendered the defendants (who were tenants) not liable. At trial, it was held that the Act did not apply and that the defendants were liable. On appeal, it was held that if there were not such a statute, the plaintiffs could recover from the defendants for services rendered at their request. The statute was enabling and not restricting. It did not preclude a local authority from making a proper and valid contract to send its fire engine outside its district at the requisition of someone who was not the owner of land or buildings. If such was done, the local authority had a common law right to recover from the person so requesting.

In *James & Egham Fire Brigade v. Staines Urban District Council* (1900), 83 L.T. 426 (Q.B.), the Egham Fire Brigade did not charge for fires within the district but did for fires outside. Staines U.D.C. had a fire brigade chief officer who had no express authority from the District Council to employ extra help. A fire occurred in the District Council area and the chief officer called in the Egham Brigade. Egham billed Staines U.D.C. and Staines U.D.C. refused to pay. The action was dismissed at trial. This decision was appealed and it was held that there was an implied authority in the superintendent to send for the Egham Brigade to aid in putting out the fire. He had an implied authority from the Council and the Council should pay for the services rendered. It was stated that in a district with no local authority, the owner who calls in the Egham Fire Brigade was solely responsible but in Staines, there is a local authority with the duty to provide fire extinction services. It was only in carrying out those responsibilities that the chief called in the additional aid. The plaintiff's claim was for work and labour done and since the chief had implied authority from Staines, his request involved an agreement by Staines to pay and the Council should pay Egham.

Counsel for the plaintiff cited the article by W.H. Angus entitled "Restitution in Canada since the Deglman Case", in 42 Can. Bar Rev. 529 (1964). This article examined restitution as a principle that no one may enrich himself at another's

expense. It appears to be a facet of this principle that restitution arose to prevent a person from retaining a benefit which it is against conscience that he should keep.

The English cases and principles referred to are distinguishable on the ground that in the present case there is a local authority (the township) which has contracted (with the town) to supply fire protection services within its area. There are no Canadian statutes applicable as in the English cases whereby landowners are to be held responsible for the costs of fire protection services, nor is there any case law to that effect. It is my view that this is a case where there is an implied authority and a public duty to call the fire department when a fire danger is apprehended. If this damage happens to be within the township, the township must pay for the services. It seems that the township attempted to fulfil its duty to provide fire extinction equipment by contracting with the Town of Durham. This is not a case where one could argue that the services of the Town of Durham were to be gratuitous. There was a valid contract between the town and the township which the town has not seen fit to invoke. It is therefore not, in my view, equitable for the defendants to fill the gap which the plaintiff has deliberately left void.

I have concluded that no cause of action against the defendants lies in contract either on the basis of an implied contract or the principle of restitution or otherwise.

As I have already indicated perhaps more than once, the plaintiff has a perfectly valid claim under its contract with the Township of Normanby for payment of its services rendered on this occasion and I for one have failed to understand why it has not availed itself of its rights under that contract. It is not necessary for me for the purposes of arriving at a decision in this matter to consider what the situation would be if the Township of Normanby paid the Town of Durham and decided to look to the defendants for the recovery of its outlay.

For the reasons given, this action will be dismissed with costs.

Action dismissed.